

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	04 – Economic Stability (ES)
	Part No./Name	F – Case Maintenance
	Section No./Name	F-100-FITAP-SNAP Claims
	Document No./Name	F-130-SNAP How To Determine Amount of Claim
	Effective Date	June 1, 2025

I. STATEMENT OF POLICY

WHEN DETERMINING THE AMOUNT OF THE CLAIM, INCLUDE ALL MONTHS OF PARTICIPATION IN THE PROGRAM ***. PARTICIPATION IN THE PROGRAM OCCURS WHEN THE BENEFITS ARE POSTED TO THE EBT ACCOUNT AND THE AVAILABILITY DATE IS REACHED, REGARDLESS OF WHETHER THE BENEFITS ARE ACCESSED BY THE HOUSEHOLD.

F-131-SNAP- PO HOW TO DETERMINE FIRST MONTH OF INELIGIBILITY OR OVERPAYMENT/OVERISSUANCE

FOR ERRORS PRESENT AT THE TIME OF CERTIFICATION, THE FIRST MONTH OF AN OVERPAYMENT/OVERISSUANCE IS THE FIRST MONTH AN ERROR CAUSES THE CLIENT TO RECEIVE MORE BENEFITS THAN HE WAS ENTITLED TO RECEIVE.

FOR CHANGES OCCURRING WITHIN A CERTIFICATION, THE FIRST MONTH OF AN OVERPAYMENT/OVERISSUANCE IS THE MONTH IN WHICH THE CHANGE WOULD HAVE BEEN EFFECTIVE HAD IT BEEN REPORTED AND ACTED UPON IN A TIMELY MANNER.

IF THE CHANGE OCCURRED IN A CASE AND WAS NOT REPORTED TIMELY, BENEFITS SHOULD HAVE BEEN TERMINATED OR REDUCED EFFECTIVE THE EARLIEST POSSIBLE MONTH AFTER THE EXPIRATION OF ADVANCE NOTICE OF ADVERSE ACTION, IF REQUIRED.

THE EFFECTIVE MONTH CANNOT BE LATER THAN THE SECOND MONTH AFTER THE CHANGE OCCURRED. For households included in Simplified Reporting, the effective month cannot be later than the third month after the household's total gross monthly income exceeded the gross income limit for their household size.

F-131-1-SNAP- PO Ineligibility or Overpayment/Overissuance Because Household Member is Incarcerated/Drug Related Felony Conviction

IF IT IS DETERMINED THAT A HOUSEHOLD REPORTED THAT A HOUSEHOLD MEMBER WAS LIVING IN THE HOME BUT THE MEMBER WAS ACTUALLY INCARCERATED DURING THE APPLICATION OR REDETERMINATION INTERVIEW or when the simplified report was received, RECOVERY IS NEEDED. THE PERIOD OF RECOVERY BEGINS AT CERTIFICATION FOR AN APPLICATION, the first month following the simplified report month for simplified reports, AND THE FIRST MONTH OF THE NEW CERTIFICATION FOR A REDETERMINATION.

PRIOR TO OCTOBER 2017 IF IT IS DETERMINED THAT A HOUSEHOLD FAILED TO REPORT A HOUSEHOLD MEMBER HAD BEEN CONVICTED OF A DRUG-RELATED FELONY AT THE APPLICATION OR REDETERMINATION INTERVIEW, RECOVERY IS NEEDED. THE PERIOD OF RECOVERY BEGINS AT CERTIFICATION FOR AN APPLICATION AND THE FIRST MONTH OF THE NEW CERTIFICATION FOR A REDETERMINATION.

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EXAMPLE: AN APPLICANT, NOT PREVIOUSLY KNOWN TO LITE, SUBMITS AN APPLICATION. THE APPLICATION WAS CERTIFIED PRIOR TO OCTOBER 2017 AND THE WEEKLY DRUG MATCH. THE APPLICANT RECEIVED BENEFITS, HOWEVER, THE APPLICANT FAILED TO REPORT A DRUG-RELATED FELONY CONVICTION ON THE APPLICATION AND DURING THE INTERVIEW. AFTER THE NEXT WEEKLY MATCH WAS COMPLETED, THE CASE WAS AUTOMATICALLY PLACED IN ACTIVE CLOSURE (AC) STATUS SINCE THE CONVICTION DATE WAS WITHIN THE PAST 12 MONTHS. RECOVERY IS NEEDED FOR ALL BENEFITS ISSUED SINCE THE CLIENT FAILED TO REPORT THE CONVICTION ON HER APPLICATION.

F-132-SNAP- PO INELIGIBILITY OR OVERPAYMENT/OVERISSUANCE BECAUSE OF AGENCY DELAY

IF THE CLIENT MADE A TIMELY REPORT OF A CHANGE BUT THE WORKER DID NOT TAKE TIMELY ACTION, THEN THE FIRST OVERPAYMENT/OVERISSUANCE MONTH IS THE MONTH THE WORKER SHOULD HAVE MADE THE CHANGE EFFECTIVE.

IF A NOTICE OF ADVERSE ACTION WAS REQUIRED BUT NOT SENT, ASSUME THAT THE MAXIMUM ADVANCE NOTICE PERIOD EXPIRED WITHOUT THE HOUSEHOLD REQUESTING A FAIR HEARING.

II. PROCEDURES

1. DETERMINE THE FIRST MONTH OF OVERPAYMENT/OVERISSUANCE IN ACCORDANCE WITH THE FOLLOWING GUIDELINES AND PROCEDURES OUTLINED IN CHAPTER 00, MISCELLANEOUS ISSUANCES MANUAL, PART O, OVERPAYMENT/OVERISSUANCE PROCEDURES, [O-003](#).

2. COMPLETE A CORRECTED BUDGET FOR EACH MONTH OF OVERPAYMENT/OVERISSUANCE. Refer to Chapter 00, Part O, [O-004-3](#) for additional instructions.

Do not apply the earned income deduction to earned income the household did not timely report

3. SUBTRACT THE AMOUNT OF BENEFITS THE HOUSEHOLD SHOULD HAVE RECEIVED FROM THE AMOUNT IT ACTUALLY RECEIVED EACH MONTH.

4. ADD TOGETHER THE AMOUNTS OF OVERPAYMENT/OVERISSUANCE FOR EACH MONTH.

5. DO NOT REDUCE THE AMOUNT OF AN OVERPAYMENT/OVERISSUANCE IN ONE MONTH BY THE AMOUNT OF AN UNDERPAYMENT/UNDERISSUANCE WHICH OCCURRED IN ANOTHER MONTH.

6. REPORT UNDERPAYMENTS/UNDERISSUANCES SEPARATELY BY * SENDING AN EMAIL TO THE FRAUD AND RECOVERY UNIT AT DCFS.FRAUD@LA.GOV. THE EMAIL MUST INCLUDE ALL REQUIRED VERIFICATION AND SUPPORTING DOCUMENTATION TO

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SUPPORT THE CLAIM. THE SUBJECT LINE OF THE EMAIL MUST READ “CLAIM NEEDED for [program]” FOLLOWED BY THE CASE IDENTIFICATION NUMBER (CID). EXAMPLE: CLAIM NEEDED FOR SNAP– CID 000000000. **

7. IN CASES WHICH HAVE BOTH AN UNDERPAYMENT/UNDERISSUANCE AND OVERPAYMENT/OVERISSUANCE, STATE OFFICE WILL OFFSET ONE AGAINST THE OTHER.
8. The LITE Claims Calculator will subtract the amount of any expunged benefits in the household's EBT account.
9. For issuance prior to EBT, exclude any months in which the household did not participate and any months over six years prior to the date of discovery or before March 1, 1979.

III. FORMS AND INSTRUCTIONS

[OFS 20CD Form](#) / [Instructions](#) Report of Claim Determination

IV. REFERENCES

Louisiana Administrative Code – Title 67 Social Services – Subpart 3 – Chapter 19: Certification of Eligible Households – Subchapter P